

2026 BALLOT QUESTIONS

2026 Ballot Question Pamphlet compiled by the Office of the Secretary of State

The text of this pamphlet is available on our website at www.sdsos.gov.

The title, explanation, and effect of a vote for each ballot question were provided by the Attorney General. No other statements on this pamphlet reflect the opinion of the Secretary of State or Attorney General.

The information was compiled by the office of the Secretary of State as required by law and provided by the authors. The information does not reflect the position of the Secretary of State's office regarding the legality or effect of the amendments or measures. The Secretary of State is not responsible for the contents, objectivity, or accuracy of the statements written by the proponent and opponent authors in this brochure.

12-13-23. Distribution of public information. The secretary of state shall distribute public information on any amendment to the Constitution, initiated measure, or referred law submitted to the electors for approval. The secretary of state shall compile the public information by printing a statement in support of the amendment to the Constitution, initiated measure, or referred law written by its proponents, if any can be identified, and a statement against the amendment to the Constitution, initiated measure, or referred law written by its opponents, if any can be identified. No statement written by a proponent, or an opponent may exceed three hundred words in length. The secretary of state is not responsible for the contents, objectivity, or accuracy of the statements written by the proponents and opponents. The pamphlet shall also include the attorney general's title, explanation, and a recitation of the effect of a "Yes" or "No" vote as written pursuant to § 12-13-9 or 12- 13-25.1; number of pages and sections in the proposed or referred language; and, if applicable, a fiscal note.

Please feel free to photocopy and distribute this pamphlet. You may also bring the pamphlet with you to vote at your polling place.

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Constitutional amendments and initiated and referred measures approved by majority vote will become effective on the first day of July after the completion of the official canvass by the State Canvassing Board. (SDCL 2-1-12)

30,000 copies of this publication were printed by the Office of the Secretary of State at a cost of $.32 each.

Constitutional Amendment K

Title: An Amendment to the South Dakota Constitution Establishing the Trust for Unclaimed Property Fund.

Attorney General Explanation: Under South Dakota statute, intangible property is presumed to be abandoned if it remains unclaimed by the owner for more than three years after it became payable or distributable. Examples of intangible property are traveler's checks, money orders, bank deposits, refunds, stocks, funds owed under a life insurance policy, and property held in a safe deposit box. Abandoned intangible property is transferred to the State Treasurer to hold while waiting for the owner to claim it. The State Treasurer must provide public notice of the abandoned property.

This proposed constitutional amendment establishes a trust fund where unclaimed abandoned property will be deposited. Portions of the interest and income from this fund will be distributed into the general fund for the benefit of the state. This proposed amendment requires the Legislature to determine the amount to be distributed that promotes the growth of the trust fund and the distributed amount.

Vote "Yes" to adopt the amendment.
Vote "No" to leave the Constitution as it is.

The text of this constitutional amendment is two pages long containing two sections.

Pro – Constitutional Amendment K	Con – Constitutional Amendment K
Vote YES on Amendment K Amendment K is a win-win for all South Dakotans. If voters approve it, unclaimed property dollars will be held in a permanent trust fund. The interest those dollars earn becomes a new permanent source of state revenue for roads, schools, and other public services without raising taxes. Unclaimed funds like forgotten bank accounts, refunds, and insurance proceeds stay protected for their rightful owners. Amendment K also delivers stronger returns. Today, those dollars sit in a temporary fund earning only 3 to 4 %. Our other state trust funds, managed by the South Dakota Investment Council are doing considerably better; School and Public Lands at 8.3 % and Education Enhancement at 7.9 %. Voting yes puts unclaimed property dollars in the same hands. Unreturned dollars go into the permanent trust fund and stay there, so when a rightful owner comes forward, the money is still there to pay the claim in full. Only interest earned each year goes to the Legislature, which gives the state a steady source of revenue without costing claimants or taxpayers a thing. For anyone claiming property through the State Treasurer's Unclaimed Property Program, nothing changes. It keeps returning money to rightful owners just as it always has. What changes is the protection behind those dollars. Pass Amendment K, and that protection is permanent. Vote it down, and the Legislature can change the law whenever it likes and spend whatever isn't claimed, just as it could under the old system. Amendment K follows the proven model of South Dakota's other permanent trusts managed by the Investment Council, and it asks nothing of anyone. Vote YES to protect unclaimed property dollars permanently, put them to work for stronger returns, and give the state a stable source of revenue without a single new tax. Josh Haeder State Treasurer	"No statement provided"